

Company: «CompanyName»

Insured: «NamedInsured»

Policy Number: «PolicyNum»

Endorsement Effective Date: «PolEffDate»

PUBLIC COMPANY MANAGEMENT LIABILITY INSURANCE AMENDED DEFINITION OF CLAIM TO INCLUDE SUBPOENA

It is agreed that:

1. Section II. Extensions, C. Subpoena Coverage of the Directors & Officers Coverage (Part 1) of this Policy is deleted in its entirety.
2. Section III. Definitions, A. **Claim** of the Directors & Officers Coverage (Part 1) of this Policy is amended by the addition of the following:
 - A. **Claim** shall also include any **Subpoena** in connection with such **Insured Person** acting in his or her capacity as such or in connection with the **Company's** business activities.
3. Solely with respect to the coverage provided by this endorsement, the last paragraph of Section III. Definitions, A. **Claim** of the Directors & Officers Coverage (Part 1) of this Policy is deleted in its entirety and replaced with the following:

Claim shall not include a **Derivative Demand, Investigative Inquiry** or any labor or grievance proceeding or investigation which is subject to a collective bargaining agreement. A **Claim** shall be deemed to have been first made at the time written notice of the **Claim** is first received by any **Insured**. All **Claims** arising out of the same **Wrongful Act** or **Interrelated Wrongful Acts** shall be deemed to be a single **Claim** first made on the date on which the earliest such **Claim** was first made.

Whenever printed in this Endorsement, the boldface type terms shall have the same meanings as indicated in the Policy Form.

ALL OTHER TERMS, CONDITIONS AND EXCLUSIONS REMAIN UNCHANGED.